



Notification Waiver Determination

CVC Capital Partners and Groupe Bruxelles Lambert – Recordati

Acquisition	Groupe Bruxelles Lambert SA (together with its subsidiaries, GBL), alongside certain funds managed and/or advised by CVC Capital Partners plc (the CVC Funds) indirectly, applied, through Respighi Bidco S.p.A (Bidco), for a notification waiver in respect of their proposed acquisition of all outstanding shares of Recordati S.p.A. (Recordati), as described in the transaction documents provided as part of the application (the Acquisition). Following completion of the Acquisition, GBL will have a shareholding of approximately 30% in TopCo with the acquiring CVC Funds holding the remainder, subject to a small amount of shares held by Mr Andrea Recordati.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 June 2026

Parties to the Acquisition	The acquirer, Bidco, is indirectly but wholly owned by Respighi Topco Sarl (TopCo). TopCo is in turn held by the CVC Funds. The CVC Network is a global alternative investment manager focused on private equity, credit, infrastructure and secondaries, and includes CVC Capital Partners plc, each of its subsidiaries from time to time and the CVC Funds. Relevantly, the CVC network's portfolio includes interests in companies active within the pharmaceutical industry. GBL is a publicly listed investment holding company headquartered in Brussels. GBL invests in global companies operating in various sectors, mainly headquartered in Europe, and relies on a stable and supportive family shareholder base. The target, Recordati, is headquartered in Milan and is an international pharmaceutical group dedicated to the research, development, manufacturing and marketing of pharmaceuticals. Recordati has operations throughout the whole of Europe, Turkey, North Africa, the US, Canada, Mexico, South America, Japan, Australia, New Zealand, China and South Korea. Recordati offers a range of pharmaceuticals across two segments: (i) Specialty & Primary Care and (ii) Rare Diseases. Recordati also produces several active ingredients and intermediates in its two pharmaceutical chemical production plants. These are mainly used in the production of some of the key products in the portfolio, but in part are also sold externally to other pharmaceutical companies.
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Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, a. the CVC Funds already control Recordati, and the Acquisition does not create any new horizontal overlap between CVC Capital Partners and Recordati in the supply of pharmaceuticals in Australia b. there is no horizontal overlap between GBL's portfolio companies and Recordati in the supply of pharmaceuticals in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act